Foundational Documents

AP US Government & Politics

AP Exam Information

IN CONGRESS, JULY 4, 1776.
A DECLARATION
BY THE REPRESENTATIVES OF THE
UNITED STATES OF AMERICA,
IN GENERAL CONGRESS ASSEMBLED.

Declaration of Independence (DOI)

Foundational Document #1

https://www.youtube.com/watch?v=BVctfLkuUxk

Declaration of Independence Summary

- **Year:** 1776
- **Written by: Thomas Jefferson** during meeting of 2nd Con. Congress as part of Committee of 5 after “Shot Heard Around the World”
- **Influenced by Enlightenment Philosophers (Social Contract Theory & John Locke):**
  - Popular sovereignty (people hold power)
  - Inalienable rights (natural rights)
  - Contract between ruler & ruled (consent of governed)
  - Job of people to break up and start again if contract violated
- **3 Part document:**
  1. Declaration of Human Rights
  2. List of 27 grievances
  3. Declaration of Independence

DOI Famous Quotes:

Jefferson on statement of human rights and the idea of contract theory:

- "When, in the course of human events, it becomes necessary for one people to dissolve the political bonds which have connected them with another, and to assume among the powers of the earth, the separate and equal station to which the laws of nature and of nature's God entitle them, a decent respect to the opinions of mankind requires that they should declare the causes which impel them to the separation. **We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable rights, that among these are life, liberty and the pursuit of happiness. That to secure these rights, governments are instituted among men, deriving their just powers from the consent of the governed. That whenever any form of government becomes destructive to these ends, it is the right of the people to alter or to abolish it, and to institute new government, laying its foundation on such principles and organizing its powers in such form, as to them shall seem most likely to affect their safety and happiness."**
- **-When one group of people choose to break off politically from another group to be their own separate and equal political existence, they should have to explain why they are doing it.**
- **-We are all equal, and have certain god given rights, which include life, liberty and chasing after our own happiness, to protect these rights we form a government by the people and give it power (Consent of governed) to protect our rights, and if the government no longer protects these rights we should be able to abolish it and start again with a new government that will protect these rights.**

DOI Famous Quotes:

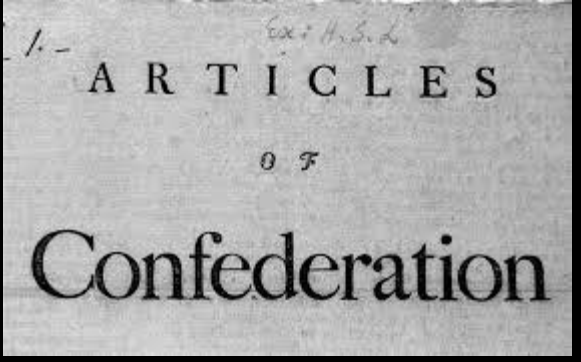
Jefferson on England's violation of contract:

- "Prudence, indeed, will dictate that governments long established should not be changed for light and transient causes; and accordingly all experience hath shown that mankind are more disposed to suffer, while evils are sufferable, than to right themselves by abolishing the forms to which they are accustomed. But when a long train of abuses and usurpations, pursuing invariably the same object evinces a design to reduce them under absolute despotism, it is their right, it is their duty, to throw off such government, and to provide new guards for their future security. — Such has been the patient sufferance of these colonies; and such is now the necessity which constrains them to alter their former systems of government. The history of the present King of Great Britain is a history of repeated injuries and usurpations, all having in direct object the establishment of an absolute tyranny over these states."
- **Out of caution/reason, government change should not be taken lightly, and generally man is willing to put up with a lot of suffering until it thinks of overthrowing or a revolution, but when they keep abusing us, infringing on our rights with cruelty and absolute power, it is the right of the people to overthrow that government and form a new one for future security**
- **Colonies are now going through this and have to change their government, King George's history with the colonies is filled with injury, abuse of power and one of a tyrant over the 13 states.**
- Then follows the list of 27 grievances!!

DOI Famous Quotes:

Jefferson's actual declaration of independence to the world:

- "We, therefore, the representatives of the United States of America, in General Congress, assembled, appealing to the Supreme Judge of the world for the rectitude of our intentions, do, in the name, and by the authority of the good people of these colonies, solemnly publish and declare, that these united colonies are, and of right ought to be free and independent states; that they are absolved from all allegiance to the British Crown, and that all political connection between them and the state of Great Britain, is and ought to be totally dissolved; and that as free and independent states, they have full power to levy war, conclude peace, contract alliances, establish commerce, and to do all other acts and things which independent states may of right do. And for the support of this declaration, with a firm reliance on the protection of Divine Providence, we mutually pledge to each other our lives, our fortunes and our sacred honor. K"
- **As representatives of the US General Congress with authority from the people of the 13 colonies we declare to the world the right to be free and independent states, no longer part of England, as free states we have full sovereignty, and in support of this declaration with godly intervention we pledge to each other our lives, our fortunes, and our sacred honor.**



Articles of Confederation

Foundational Document #2

https://www.youtube.com/watch?v=oct-vb367uM

Articles of Confederation Summary:

-Name of 1st US Govt. after the revolutionary war: **Articles of Confederation**

- Ratified: **1781**
  1. The articles created a **Union** of **Sovereign** states in which the **States** not the **National Government**, were **Supreme.**
  2. The articles created a **weak** national government with few structures to make **member** states work together.
  3. **Two main reasons why Confederation chosen:**
     - Lack of trust for governments of other states
     - Not trusting a government ruling over them from far away
  4. **Structure of AOC:**
     - Each state represented in the AOC: Equal representation
     - Votes each state granted: 1 vote per state
     - Branches of govt. AOC had: One branch, a unicameral Congress w/President chosen from Congress
     - Each state # of Rep. & how chosen: State governments chose who & how many
  5. **Powers of AOC:**
     - Make war & peace
     - Send & receive ambassadors
     - Enter treaties
     - Raise & equip a navy
     - Maintain army, request troops from states
     - Appoint senior military officers
     - Fix standards of weights & measures
     - Regulate Indian affairs
     - Establish post offices
     - Decide certain disputes among the states
     - All 13 states had to agree to amend this document
     - 9/13 states needed to declare war and pass laws

AOC Summary:

-Limitation (weaknesses) on the power of the Confederal Government:

- Enforcement of policies:
  - **a weak national government that could not force the states to carry out its policies**
- Taxation power:
  - **Could not levy a tax, could only request money from the states**
- Foreign policy:
  - **National dealt with war and peace and ambassadors, but states were levying their own tariffs on foreign countries and making own trade deals**
- Domestic trade:
  - **Many restrictions and tariffs between states and not allowing for a national economy**
- Representation/voting:
  - **Up to 7 representatives could be sent, but one vote regardless, states legislature chose**
- Judicial branch:
  - **No national judicial branch, unicameral congress would attempt to settle disputes, but decision not binding, state courts favored own citizens**
- Executive branch:
  - **No executive branch, President part of Congress, could not enforce any national laws**

AOC Famous Quotes:

-Purpose of them coming together:

- "The said States hereby severally enter into a firm league of friendship with each other, for their common defense, the security of their liberties, and their mutual and general welfare, binding themselves to assist each other, against all force offered to, or attacks made upon them, or any of them, on account of religion, sovereignty, trade, or any other pretense whatever."

-Unicameral Congress will act as judicial branch as well:

- "The United States in Congress assembled shall also be the last resort on appeal in all disputes and differences now subsisting or that hereafter may arise between two or more States concerning boundary, jurisdiction or any other causes whatever"

-Powers granted to this government:

- "The United States in Congress assembled shall never engage in a war, nor grant letters of marque or reprisal in time of peace, nor enter into any treaties or alliances, nor coin money, nor regulate the value thereof, nor ascertain the sums and expenses necessary for the defense and welfare of the United States, or any of them, nor emit bills, nor borrow money on the credit of the United States, nor appropriate money, nor agree upon the number of vessels of war, to be built or purchased, or the number of land or sea forces to be raised, nor appoint a commander in chief of the army or navy, unless nine States assent to the same"

US Constitution

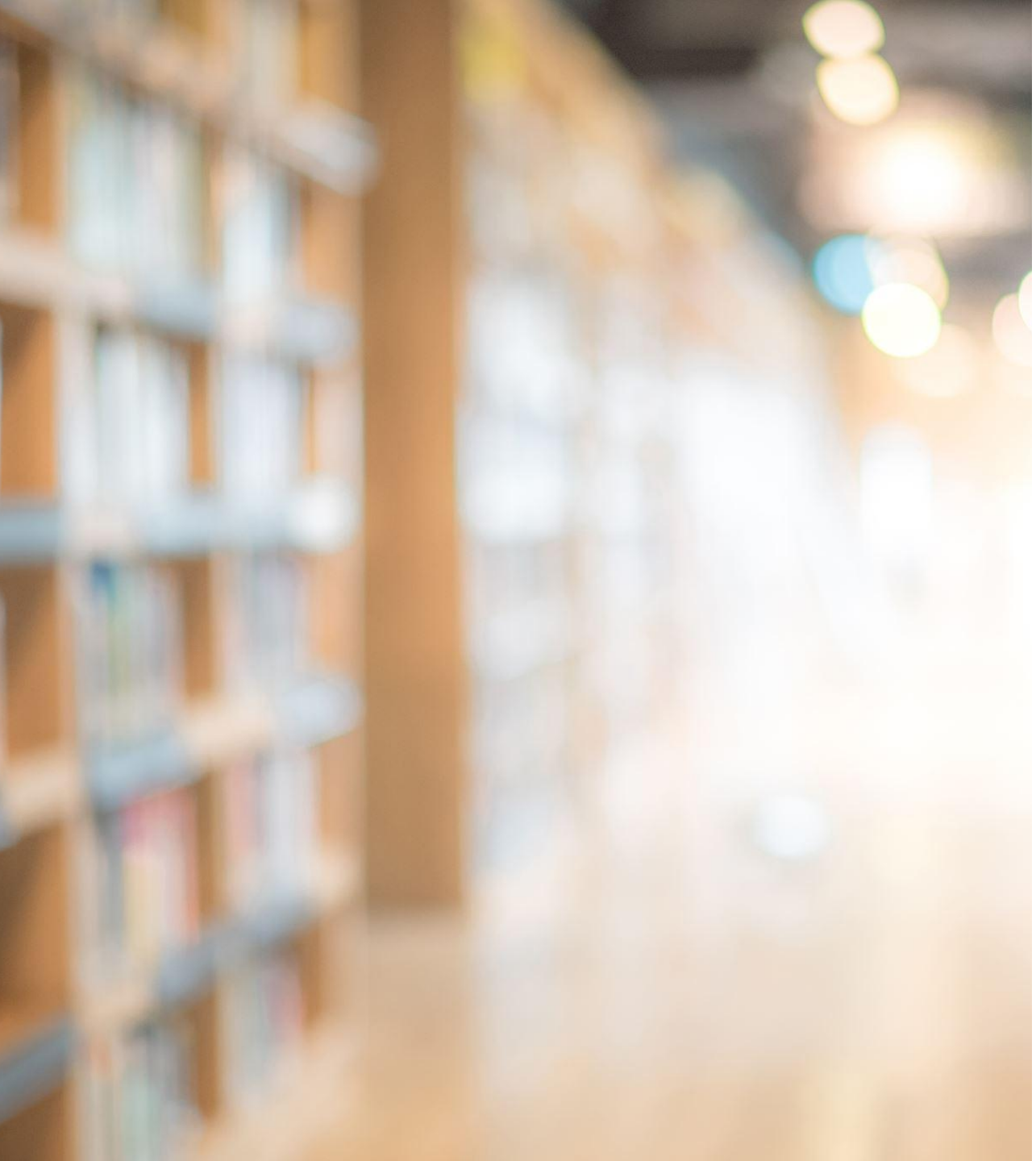
Foundational Document #3

https://www.youtube.com/watch?v=1MW1eYICTzU

US Constitution Summary

-For detailed information refer to U2 PPT 1: Principles & Structure of US Constitution

- **Written by:** James Madison 1787 (Virginia plan mostly)
- **Representation:** House: population; Senate: equal rep.
- Based on 6 principles:
    1. Popular sovereignty
    2. Limited Government
    3. Judicial Review
    4. Federalism
    5. Separation of powers
    6. Checks & balances



US Constitution Summary:

-Three Part Structure:

1. ***Preamble: statement of purpose/goals***
    - Form a more perfect union
    - Establish justice
    - Insure Domestic Tranquility
    - Provide for the common defense
    - Promote the general welfare
    - Secure the blessings of liberty
2. ***Seven Articles:***
    - Article I: Legislative Branch
    - Article II: Executive Branch
    - Article III: Judicial Branch
    - Article IV: Relations among the state
    - Article V: Amending the document
    - Article VI: Supremacy Clause
    - Article VII: Ratification
3. ***Bill of Rights & the other 27 Amendments***

US Constitution Summary:

-Bill of Rights 1791:

- **Amendment 1:** Speech, Press, Petition, Assembly, Religion
- **Amendment 2:** Bear arms
- **Amendment 3:** Quartering of Troops
- **Amendment 4:** Search & Seizure
- **Amendment 5:** Grand Jury, Double Jeopardy, Eminent Domain, Remain silent, Due Process (national)
- **Amendment 6:** Speedy public trial, witnesses for/against, right to lawyer, nature of accusation
- **Amendment 7:** right to sue in federal court if above $20 ($75,000)
- **Amendment 8:** excessive bail/fine, cruel & unusual punishment
- **Amendment 9:** other rights reserved for the people
- **Amendment 10:** powers reserved for states to practice (Reserved powers)

US Constitution Summary:

Amendment 11: State level law suits final, fed courts stay out

Amendment 12: Separate ballot for President & VP (1800 election)

Amendment 13: No slavery or involuntary servitude

Amendment 14: Citizenship, state level immunities & privileges, state level due process, state level equal protection of laws

Amendment 15: Right to vote for all males regardless of color

Amendment 16: Income tax

Amendment 17: Senators chosen by voters not state legislatures

Amendment 18: Prohibition of alcohol

Amendment 19: Woman's suffrage

Amendment 20: Lame duck session from April to january

Amendment 21: Repeal of prohibition (amendment 18)

Amendment 22: Presidential term limits

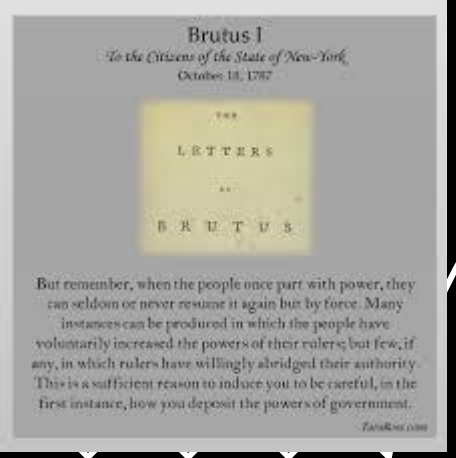
Amendment 23: DC 3 electoral votes

Amendment 24: Ban on poll tax

Amendment 25: Presidential disabilities act

Amendment 26: Right to vote for 18 and over

Amendment 27: Congressional pay raise after elections


Brutus I

To the Citizens of the State of New-York

October 18, 1787

THE

LETTERS

OF

BRUTUS

But remember, when the people once part with power, they can seldom or never resume it again but by force. Many instances can be produced in which the people have voluntarily increased the powers of their rulers; but few, if any, in which rulers have willingly abridged their authority. This is a sufficient reason to induce you to be careful, in the first instance, how you deposit the powers of government.

Brutus #1

Foundational Document #4

https://www.youtube.com/watch?v=tm-fNMWuJwo

Brutus 1 Summary:

- Written by **Robert Yates** as a critique of the US Constitution
- The Anti-Federalists were against the US Constitution because:
  - Feared size & population of country too big & diverse for Republic
  - National Govt. far away, lose touch with people/voters who elected them
  - Gave too much power to national/central govt.
  - Congress:
    - Necessary & proper clause
    - Article VI Supremacy Clause
    - Power to tax for general welfare
    - Controlling military
    - Regulating interstate commerce

Brutus 1 Famous Quotes:

Brutus 1 Article 1 section 8 clause 18 (Necessary & Proper Clause, root of implied powers):

- **"How far the clause in the 8th section of the 1st article may operate to do away all idea of confederated states, and to effect an entire consolidation of the whole into one general government, it is impossible to say. The powers given by this article are very general and comprehensive, and it may receive a construction to justify the passing almost any law. A power to make all laws, which shall be necessary and proper, for carrying into execution, all powers vested by the constitution in the government of the United States, or any department or officer thereof, is a power very comprehensive and definite, and may, for ought I know, be exercised in a such manner as entirely to abolish the state legislatures."**
    - Powers stated are very broad, vague & due to **necessary and proper clause** can lead to laws passed abolishing the power of state governments & legislatures.

Brutus 1 on Article 6 (Supremacy Clause):

- **"Suppose the legislature of a state should pass a law to raise money to support their government and pay the state debt, may the Congress repeal this law, because it may prevent the collection of a tax which they may think proper and necessary to lay, to provide for the general welfare of the United States? For all laws made, in pursuance of this constitution, are the supreme law of the land, and the judges in every state shall be bound thereby, any thing in the constitution or laws of the different states to the contrary notwithstanding. — By such a law, the government of a particular state might be overturned at one stroke, and thereby be deprived of every means of its support."**
    - What if state needs to tax the citizens to do its job & pay debts, but national government repeals the law because it interferes with its need for money to do the same, this clause will make national laws supreme, and courts would have to agree and oppose the state laws and needs for revenue and providing services.

Brutus 1 Famous Quotes:

Brutus 1 on Taxation & General Welfare:

- **“The legislative power is competent to lay taxes, duties, imposts, and excises; — there is no limitation to this power, unless it be said that the clause which directs the use to which those taxes, and duties shall be applied, may be said to be a limitation; but this is no restriction of the power at all, for by this clause they are to be applied to pay the debts and provide for the common defence and general welfare of the United States; but the legislature have authority to contract debts at their discretion; they are the sole judges of what is necessary to provide for the common defence, and they only are to determine what is for the general welfare: this power therefore is neither more nor less, than a power to lay and collect taxes, imposts, and excises, at their pleasure; not only the power to lay taxes unlimited, as to the amount they may require, but it is perfect and absolute to raise them in any mode they please. The authority to lay and collect taxes is the most important of any power that can be granted; it connects with it almost all other powers, or at least will in process of time draw all other after it; it is the great mean of protection, security, and defence, in a good government, and the great engine of oppression and tyranny in a bad one.”**
- No limits to Congress’s power to tax, unless we state what they can raise taxes for, and even then still too broad of a power, since they can use to pay debts, defense, or **general welfare**, they can collect it on their own, and only they decide what is general welfare, which means they can abuse this power, unlimited power to tax in any way they pleasethis is a very important power to lose control over as it connects to all other powers, if used right great for safety and security, and in hands of bad leads to tyranny and abuse.

Brutus 1 Famous Quotes:

Brutus 1 on Standing armies:

- **"A free republic will never keep a standing army to execute its laws. It must depend upon the support of its citizens. But when a government is to receive its support from the aid of the citizens, it must be so constructed as to have the confidence, respect, and affection of the people. Men who, upon the call of the magistrate, offer themselves to execute the laws, are influenced to do it either by affection to the government, or from fear; where a standing army is at hand to punish offenders, every man is actuated by the latter principle, and therefore, when the magistrate calls, will obey: but, where this is not the case, the government must rest for its support upon the confidence and respect which the people have for their government and laws."**
- Reminds him of Britain and colonies, soldiers are used to carry out the wishes of the King, which leading to destruction of liberty, which cannot happen in a Republic. Instead of scaring people with military to follow the law, which is what bad governments do, good ones respect their citizens, and those citizens follow the laws out of respect.

Brutus 1 on Size of Republic:

- **A free republic cannot succeed over a country of such immense extent, containing such a number of inhabitants, and these increasing in such rapid progression as that of the whole United States. In a pure democracy the people are the sovereign, and their will is declared by themselves; for this purpose they must all come together to deliberate, and decide. This kind of government cannot be exercised, therefore, over a country of any considerable extent; it must be confined to a single city, or at least limited to such bounds as that the people can conveniently assemble, be able to debate, understand the subject submitted to them, and declare their opinion concerning it. "**
- No, Republic will not work in a big country like US. Democracy requires the people coming together to form our governments and laws, difficult to do when there are too many people, only a small city/place when it is easy to assemble a small group can a republic work (early Greeks & Romans).

Brutus 1 Famous Quotes:

Brutus 1 on Size of Republic:

- **"The territory of the United States is of vast extent; it now contains near three millions of souls, and is capable of containing much more than ten times that number. Is it practicable for a country, so large and so numerous as they will soon become, to elect a representation, that will speak their sentiments, without their becoming so numerous as to be incapable of transacting public business? It certainly is not. In a republic, the manners, sentiments, and interests of the people should be similar. If this be not the case, there will be a constant clashing of opinions; and the representatives of one part will be continually striving against those of the other. This will retard the operations of government, and prevent such conclusions as will promote the public good."**
- In a large Republic, difficult for representative to be properly informed of varying opinions. A republic should have less people with similar interest or else one representative will be working against another representative making it impossible to govern the way people want.

Federalist #10

Foundational Document #5

https://www.youtube.com/watch?v=oUeM0oMomI4

Fed 10 Summary:

An essay written by **James Madison** where he argues that the dangers of factions (groups) can be mitigated (made less severe) by a Republican government, and more preferably a large Republic.

- **Problem:** people would form groups with similar people who share each other's interest and motives (Factions, minority or majority) and would work to use government to get what they want, trampling on the rights of others
- **Solution:** Instead of eliminating groups/factions. We must work to minimize their affects through:
    1. ***A Republic:*** when faction is a minority (less than 50%), a representative government can filter bad ideas out by voting against it
    2. ***A large Republic:*** works against a majority factions (larger than 50%) being formed across the country due to large population and diversity within population
        - No single group can become 51%
        - More representatives to out vote bad ideas
        - Allows for formation of competing groups
    3. ***Separation of Powers and Check n Balances***
        1. As long an independent judicial branch exercising judicial review

Fed 10 Famous Quotes:

How Madison defines Factions:

- **"By a faction, I understand a number of citizens, whether amounting to a majority or a minority of the whole, who are united and actuated by some common impulse of passion, or of interest, adverse to the rights of other citizens, or to the permanent and aggregate interests of the community."**
- A group of people who either make up a 51% (majority) or more or 49% or less (minority) who come together based on a common interest/passion which can be harmful to other citizens or whole community.

Madison's reaction to Anti-Federalists wanting to get rid of factions:

- **"Liberty is to faction what air is to fire, an ailment without which it instantly expires. But it could not be less folly to abolish liberty, which is essential to political life, because it nourishes faction, than it would be to wish the annihilation of air, which is essential to animal life, because it impacts to fire its destructive agency."**
- Liberty is to forming groups, as air is to spread of fire, we should not try to get rid of our liberties in order to get rid of groups, like getting rid of air to stop spreading of fire, which will kill all of us.

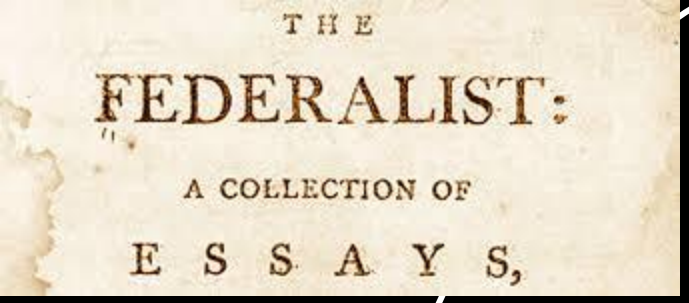
Madison explains why large Republic (Constitution) better than small republics (AOC):

- **"… the smaller the number of individuals composing a majority, and the smaller the compass within which they are placed, the more easily will they concert and execute their plans of oppression. Extend the sphere, and you take in a greater variety of parties and interests; you make it less probable that a majority of the whole will have a common motive to invade the rights of other citizens."**
- The smaller the area and population, the easier it is for one group to form a majority (51% interest) on any issue/ Make the area larger and population larger and more diverse, therefore making it less likely that any group can come together over any interest with over half of the population.

Fed 10 Famous Quotes:

Madison explains the advantage of a large Republic:

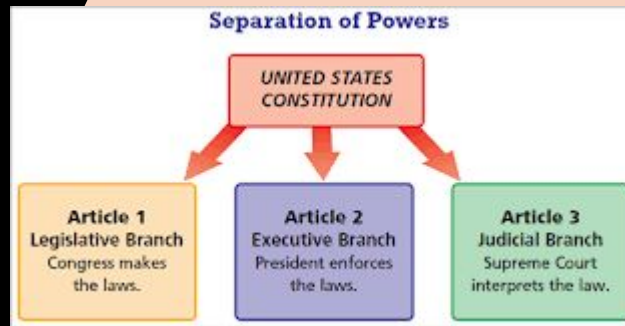
- **“Whilst all authority in it will be derived from and dependent on the society, the society itself will be broken into so many parts, interests, and classes of citizens, that the rights of individuals, or of the minority, will be in little danger from interested combinations of the majority...”**
- Although the power of this government comes from the people, the people will be many with different interests from different classes that the rights of people and minority will be in very little danger from the majority.

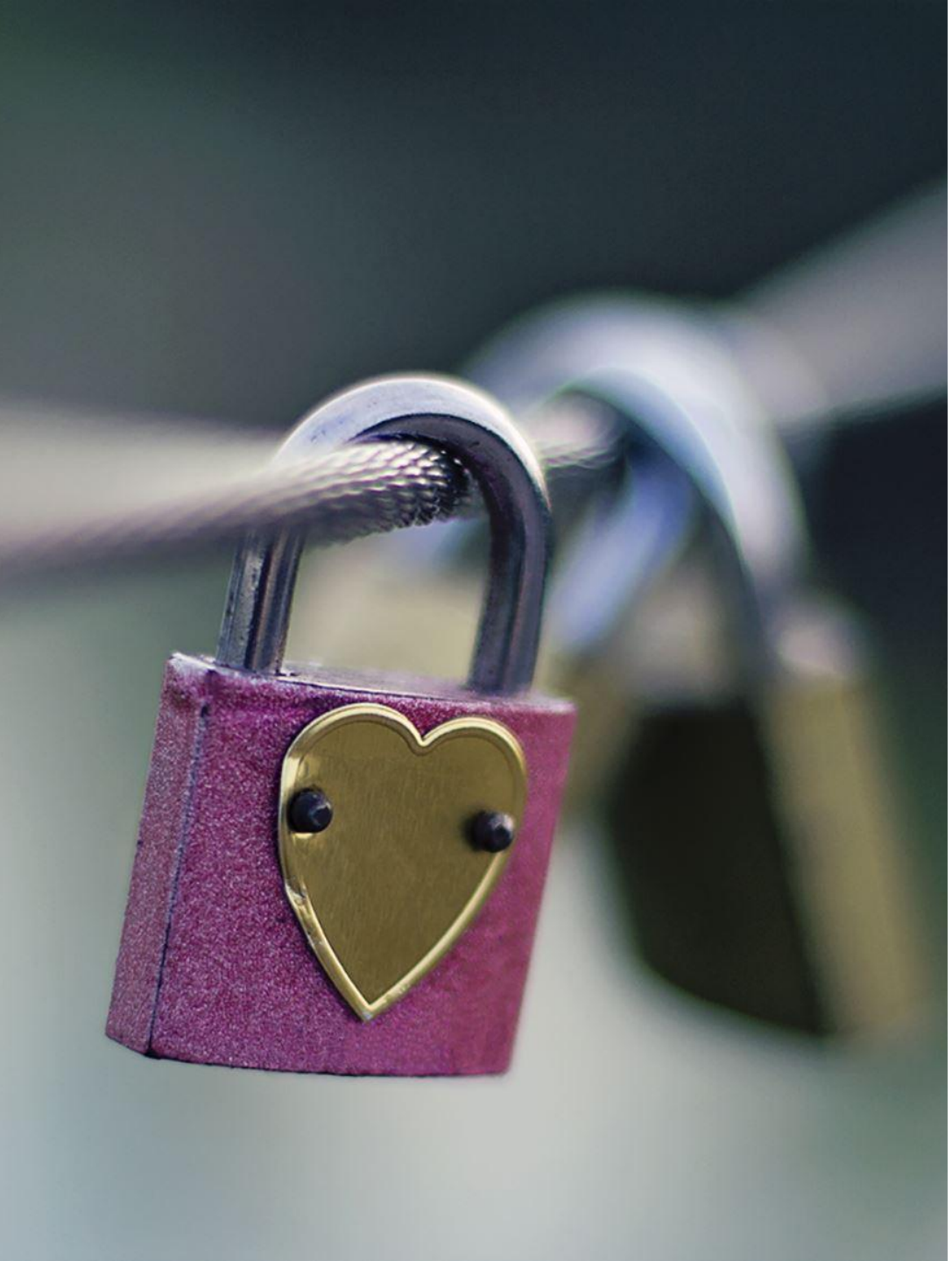


Federalist #51

Foundational Document #6

https://www.youtube.com/watch?v=f6J-mKOGaVQ





Fed 51 Summary:

- Written by **James Madison** as a way of defending the US Constitution against Anti-Federalists fear that it was too powerful of a national government which would trample of citizens and states rights.
- Madison points to following for why power limited and will not become tyrannical:
  1. **Separation of Powers:** independent branches w/separate duties
  2. **Check & balances:** each w/power to push back against overreach
  3. **Bicameralism:** a two-house legislature to check bills & ideas
  4. **Federalism:** two levels of government checking each other (national v state)

Fed 51 Famous Quotes:

Madison on why partitions are necessary:

- **"To what expedient, then, shall we finally resort, for maintaining in practice the necessary partition of power among the several departments, as laid down in the Constitution? The only answer that can be given is, that as all these exterior provisions are found to be inadequate, the defect must be supplied, by so contriving the interior structure of the government as that its several constituent parts may, by their mutual relations, be the means of keeping each other in their proper places.**

- Partitions refers to division of powers within the branches of government, to divide the power and have a system of checks and balances.

Madison on what is needed and why "own will" necessary:

- **"In order to lay a due foundation for that separate and distinct exercise of the different powers of government, which to a certain extent is admitted on all hands to be essential to the preservation of liberty, it is evident that each department should have a will of its own; and consequently should be so constituted that the members of each should have as little agency as possible in the appointment of the members of the others. Were this principle rigorously adhered to, it would require that all the appointments for the supreme executive, legislative, and judiciary magistracies should be drawn from the same fountain of authority, the people, through channels having no communication whatever with one another...Some deviations, therefore, from the principle must be admitted."**

- Each branch should have a clearly separate task for governing that is independent of the other two branches. Members of each branch should have very little in how members of other branches are chosen (Legislative, Executive, Judicial).

Madison's explanation for relationship between the departments:

- **"It is equally evident, that the members of each department should be as little dependent as possible on those of the others… Were the executive magistrate, or the judges, not independent of the legislature in this particular, their independence in every other would be merely nominal."**
- There should be very little dependence on each other as branches, and if not, the connection should be very small or unimportant

Fed 51 Famous Quotes:

Madison's reference to need for checks & balances:

- **"Ambition must be made to counteract ambition. ... It may be a reflection on human nature, that such devices should be necessary to control the abuses of government."**
- Branches must be ready to check each other when one oversteps its boundaries, same desire must compel other branches to stop the overreach when one branch goes beyond its powers.

Madison's view on human nature:

- **"If men were angels, no government would be necessary. If angels were to govern men, neither external nor internal controls on government would be necessary. You must first enable the government to control the governed; and in the next place oblige it to control itself."**
- If man was good by nature this wouldn't be necessary, but we are not, so you must first make government watch over man, then watch over itself since run by man.

The purpose of his system:

- " **the constant aim is to divide and arrange the several offices in such a manner as that each may be a check on the other"**
- Point is to separate the power into branches and let each branch check the other branches.

Fed 51 Famous Quotes:

Madison's view on how to keep most powerful branch in check:

- **"But it is not possible to give to each department an equal power of self-defense. In republican government, the legislative authority necessarily predominates. The remedy for this inconveniency is to divide the legislature into different branches; and to render them, by different modes of election and different principles of action, as little connected with each other as the nature of their common functions and their common dependence on the society will admit. It may even be necessary to guard against dangerous encroachments by still further precautions..."**
- It is not possible all branches have equal power and check. Legislative branch in Republics are the most powerful branch, so you have to make a bicameral legislature and give them different ways of being elected, different tasks & powers, and make them connected to each other as little as possible, and you still may have to do more later

What further checks the power of national govt. according to Madison:

- **"First. In a single republic, all the power surrendered by the people is submitted to the administration of a single government; and the usurpations are guarded against by a division of the government into distinct and separate departments. In the compound republic of America, the power surrendered by the people is first divided between two distinct governments, and then the portion allotted to each subdivided among distinct and separate departments. Hence a double security arises to the rights of the people. The different governments will control each other, at the same time that each will be controlled by itself.**
- In a single republic, power is only separated in a single level government, in multi-level US (Federal) power is first divided between national and state checking each other, then each level is also separated in multiple branches with checks and balances. 2 layer security for people and their rights.

Federalist #70

Foundational Document #7

https://www.youtube.com/watch?v=M37VDCB_6WI

Federalist 70 Summary:

- **Written by:** Alexander Hamilton
- **Purpose:** to defend why the Executive Branch was set up with a single President to be its leader
- **Opposed by:** Anti-Federalists who saw potential here for abuse by single tyrant who could act like dictator and trample on people and state rights
- Hamilton defended the structure due to need for:
    1. Energy
    2. Strength
    3. Speed to react
    4. No Faction vs faction
    5. Place blame
    6. Give credit to and re-elect

Fed 70 Famous Quotes:

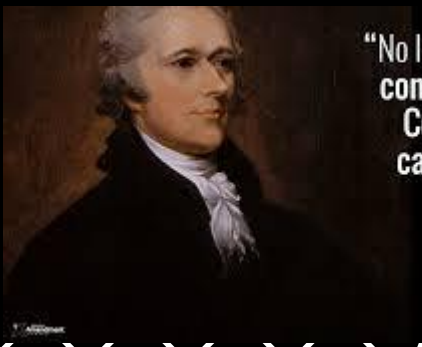
- “Energy in the Executive is essential to the protection; steady administration of the laws; to the security of liberty”
  - Need an active president who can respond quickly & decisively to events happening outside of country & domestically laws are being administered properly not infringing on rights
- “A feeble executive implies a bad execution; a government ill executed must be a bad government”
  - a weak president leads to a bad execution of laws and therefore a bad government not able to carry out its duties
- “need unity, duration, adequate provisions for its support; competent powers; dependence on the people”
  - Presidency should be given to a single person (unity) with the right length of time to accomplish the job (duration), be paid a good salary to keep from corruption (adequate provisions), just enough powers to carry out intent of job (competent powers) and this president must be accountable to the people (elections)

FED 70 Famous Quotes:

- “activity, secrecy, and dispatch, one man in a much more eminent degree than the proceedings of any greater number, two or more persons difference of opinion”
  - Hamilton argues why one person is better than group because one can act faster, no one to disagree with, no one to sabotage you; with group one can disagree and work against, or leaking information etc… cannot react well to situations, slow down process
- “In the legislature, promptitude of decision is oftener an evil than a benefit, differences of opinion promote deliberation and circumspection, which check excesses in the majority; in the executive most necessary ingredients are vigor and expedition”
  - Hamilton states that legislature and lawmaking is set up to be slow and deliberate process so only what’s for the good of country becomes law or policy, and not allow majority to force through what is bad for rest or country, but the executive branch or president is dependent on strength and speed to carry out laws and govern a nation, especially when at war defending nation

FED 70 Famous Quotes:

- “Objections to a plurality in the executive is that it tends to conceal faults and destroy responsibility. It often becomes impossible to blame or punish; public opinion is left in suspense”
  - Hamilton goes on to argue further that when something goes wrong it is easier to blame and hold one president accountable, with a group it is very easy to blame another or hide blame, making it difficult to know who to blame or punish; or who did it to what degree
- “restraints of public opinion, the opportunity of discovering with clearness the misconduct of the persons they trust, removal from office or punishment”
  - When there is only one president, we have better opportunity with clearness to see the misconduct or wrongdoing which will allow us to proceed to impeachment or criminal charges or not re-electing, or all of the above.



Federalist # 78

Foundational Document 8

https://www.youtube.com/watch?v=2_udhlFNNBk

Fed 78 Summary:

- **Written by:** Alexander Hamilton
- **Purpose:** to explain why the Judicial Branch is set up the way it is
- **Opposed by:** Anti-Federalist who thought too much power for judges with lifetime tenure to decide what law is
- **Hamilton's main arguments:**
  - The least dangerous, power of judgment (needs Executive B.)
  - Can't attack the other 2 branches (no will or force)
  - Must stay independent of other 2 branches to be effective
  - Use judicial review to put down unconstitutional acts by other branches
  - Life terms necessary to be independent, politically insulated
  - Life terms also an incentive to get the best legal minds from private jobs

Fed 78 Famous Quotes:

-Hamilton on Judicial Branch as a separate branch:

"the judiciary, from the nature of its functions, will always be the least dangerous to the political rights of the Constitution . . . [it] may truly be said to have neither FORCE nor WILL, but merely judgment; and must ultimately depend upon the aid of the executive arm even for the efficacy of its judgments.

- The Judicial branch not a threat to the Constitutional rights of people, unlike executive branch it does not have police/military (force), unlike legislative branch cannot write laws/tax (will) people's rights away, it can only give its opinion/ruling (judgement), and even that is dependent on the Executive branch to carry out.

"This simple view of the matter suggests several important consequences. It proves incontestably, that the judiciary is beyond comparison the weakest of the three departments of power; that it can never attack with success either of the other two . . . that . . . the general liberty of the people can never be endangered from that quarter; I mean, so long as the judiciary remains truly distinct from both the legislative and the Executive."

- Judicial branch is the weakest/least threatening of the 3 branches when it comes to rights being taken away, has no way/means of attacking other 2 branches, as long as separation of powers keeps it separate from the other two.

"The complete independence of the courts of justice is peculiarly essential in a limited Constitution. By a limited Constitution, I understand one which contains certain specified exceptions to the legislative authority; such, for instance, as that it shall pass no bills of attainder, no ex-post-facto laws, and the like. Limitations of this kind can be preserved in practice no other way than through the medium of the courts of justice, whose duty it must be to declare all acts contrary to the manifest tenor of the Constitution void. Without this, all the reservations of particular rights or privileges would amount to nothing."

- A limited government (one of the principle of US Const.) needs an independent judicial branch, to make sure certain exceptions in the Constitution are ruled void when it happens (we have talked about these many times), without this independence our rights & privileges would be worthless.

Fed 78 Famous Quotes:

-Hamilton on need for independence & life tenure:

"For there is no liberty, if the power of judging be not separated from the executive and legislative powers."

- Those who make the laws or enforce the laws, cannot also be the same people who tell us if the laws are constitutional or not, if this happens our rights are gone.

"If, then, the courts of justice are to be considered as the bulwarks of a limited Constitution against legislative encroachments, this consideration will afford a strong argument for the permanent tenure of judicial offices, since nothing will contribute so much as this to that independent spirit in the judges which must be essential to the faithful performance of so arduous a duty."

- To make sure the judicial branch protects the limits stated in the US Constitution and not allow legislative branch to take it away through passing unconstitutional laws, then it makes sense for judges on judicial branch to have life terms based on good behavior to make sure they preserve their independence and a check against overreach by legislative branch.

"Temporary duration in office, which would naturally discourage such characters from quitting a lucrative line of [law] practice to accept a seat on the bench, would have a tendency to throw the administration of justice into hands of less able, and less well qualified, to conduct it with utility, and dignity."

- Not having a term for life means not many would want to leave their prosperous law careers (working privately), which means not getting the most qualified, and the people and court would suffer due to doing their job as well or they way intended

Fed 78 Famous Quotes:

-Hamilton on Court's role:

"Must be to declare all acts contrary to the manifest tenor of the Constitution void."

- Should be to declare all acts against Constitution as unconstitutional/void, this becomes "judicial review"

"… the courts were designed to be an intermediate body between the people and the legislature, in order, among other things, to keep the [legislature] within the limits assigned to their authority."

- Courts are supposed to be in the middle of people and the law makers to make sure congress is only doing things assigned to it by US Const.

"nor does this conclusion by any means suppose a superiority of the judicial to the legislative power. It only supposes that the power of the people is superior to both; and that where the will of the legislature, declared in its statutes, stands in opposition to that of the people, declared in the constitution, the judges ought to be governed by the latter rather than the former."

- Power of people as stated in Constitution is above both legislature & judicial branches, if either go beyond the people, or their actions go against the will of the people then it should be deemed unconstitutional, judges should do their job based on Constitution/people, rather than what legislature wants outside of constitution.

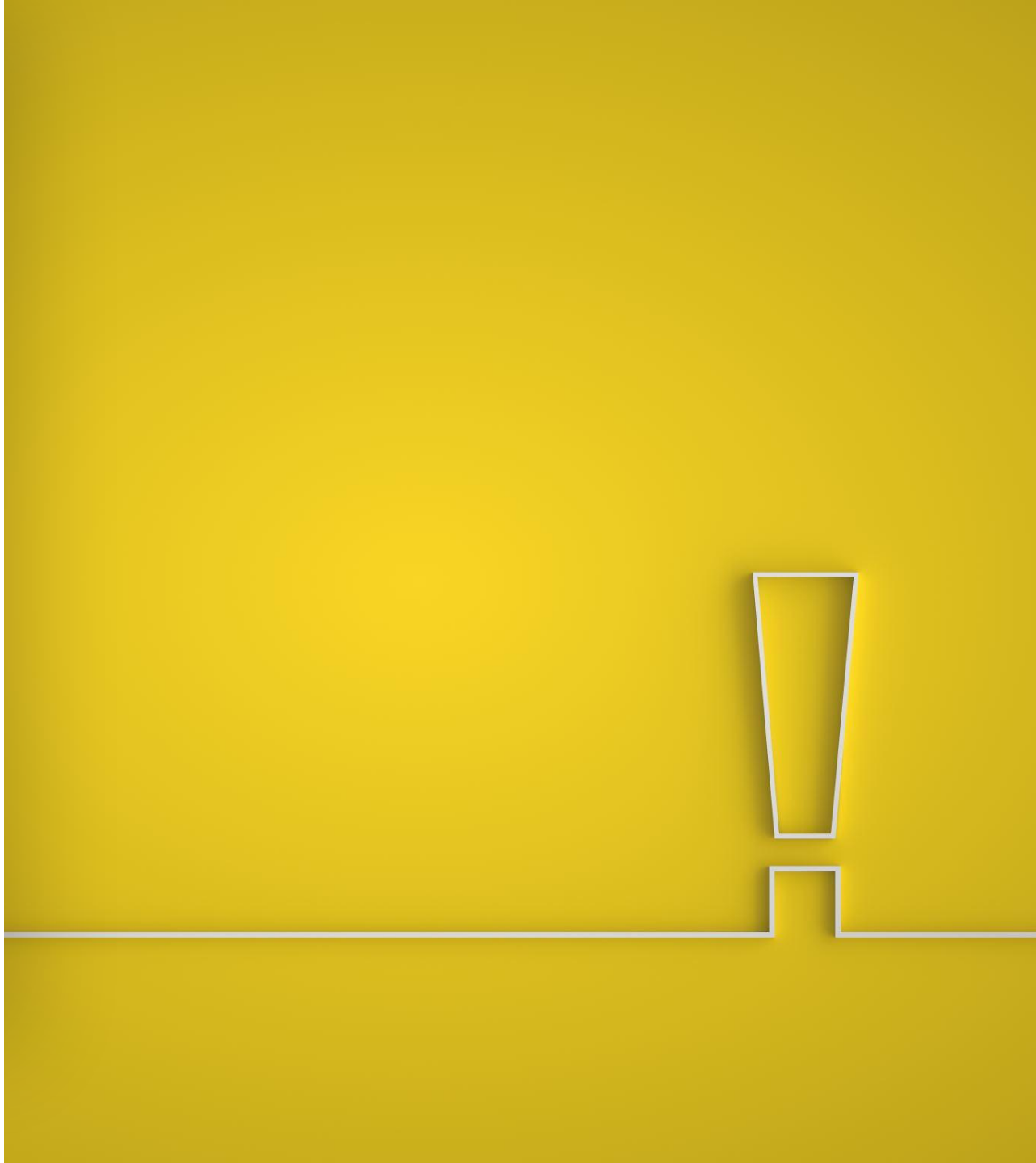
“Letter From A Birmingham Jail”

Foundational Document #9

https://www.youtube.com/watch?v=EpTvl7MvWjM

Letter From A Birmingham Jail Summary

- **Written by:** Dr Martin Luther King Jr
- **Where:** Birmingham Jail 1962
- **Why:** arrested for leading a march against injustice and racist segregation laws of Birmingham, Alabama
- **Purpose:** to address a column written by a group of white moderate clergy representing different religious denominations in Birmingham, saw Dr king as an outside agitator who was going to make matters worse, blacks should wait and let courts and Alabama legislature take care of it



Letter From Birmingham Famous Quotes:

- Dr King makes references to biblical figures in response:
  - How early prophets spread the word of God beyond their area & cities, were regarded as outside agitators (Jesus, Paul) he will do the same for freedom, Since all are members of clergy, using references they would all understand/agree with.
- “Injustice anywhere is a threat to justice everywhere. We are caught in an inescapable network of mutuality, tied in a single garment of destiny. Whatever affects one directly, affects all indirectly.”
  - As long as injustice exists it threatens all justice everywhere, we are in this struggle together and need/rely on each other, when one mistreated like all are mistreated. We are all members of human race, must help secure each other’s freedoms/rights.

Letter From Birmingham Famous Quotes:

-Dr King's 4 step non-violent campaign:

1. **Collection of facts:** see if injustice exists
2. **Negotiations:** try to negotiate with leaders
3. **Self-purification:** train to resist/protest unjust laws w/out retaliating
4. **Direct action:** resistance/direct-action, revisit negotiations.

- ***Dr King defines "just" laws and "unjust" laws:***
  - Unjust law: A law passed by a majority that only the effects the minority who has to obey, law that goes against nature or God.
  - Just law: A law passed by majority that both minority and majority must follow, law that is aligned with nature or God.

-"Shallow understanding from people of good will is more frustrating than absolute understanding from people of ill will. Lukewarm acceptance is much more bewildering than outright rejection."

- People who agree w/your unjust suffering, but don't agree with means of non-violent protest to solve problems due to need for order and peace are more frustrating than those against us who make it very clear where they stand.

Letter from Birmingham Famous Quotes:

- The definition of “extremist” that Dr. King uses when he gladly accepts the label:
  - He recognizes good (Jesus, Paul) & bad extremists, he prefers to be an extremist for freedom & love, for the extension of justice. The nation & world in need of more creative extremists.